Nos. 21A244, 21A247

In the Supreme Court of the United States

NATIONAL FEDERATION OF INDEPENDENT BUSINESS, ET AL.
Applicants

v.

OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION, ET AL.
Respondents

OHIO, ET AL.
Applicants

v.

DEPARTMENT OF LABOR, OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION, ET AL.
Respondents

ON APPLICATION FOR STAY OF ADMINISTRATIVE ACTION AND PETITION FOR A WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SIXTH CIRCUIT

JOINT UNOPPOSED MOTION FOR DIVIDED ARGUMENT

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Pursuant to Rules 21 and 28.4, the applicants in case 21A244 ("the Business Association Applicants") and the applicants in case 21A247 ("the State Applicants") jointly move for divided argument. The applicants request to evenly divide their 30 minutes of argument time, with each group receiving 15 minutes. Through their counsel, the respondents have declined to take any position on this motion.

1. The two groups of applicants have been represented by different counsel throughout this litigation. They filed separately in the courts of appeals and they separately sought relief from this Court.

2. Although generally aligned, the Business Association Applicants and the State Applicants have distinct interests in this case. The Business Association Applicants seek a stay to prevent irreparable injury to the businesses of their respective members, which are collectively responsible for trillions of dollars of economic activity in the country. The State Applicants, in contrast, seek relief to: prevent the federal government from regulating matters over which the State Applicants alone have constitutional authority; defend their own laws and policies against a federal regulation with preemptive force; and protect their citizens from being subjected to an illegal regulation. Further, under the challenged rule, States "that administer their own state OSHA Plans" will be made to "enforce the vaccinate-or-test mandate against any covered public employees and private businesses in their jurisdiction" if a stay is not granted. *In re MCP No. 165, Occupational Safety & Health Admin., Interim Final Rule: COVID-19 Vaccination & Testing*, No. 21-7000, et al. 2021 WL 5914024, at *4 (6th Cir. Dec. 15, 2021) (Sutton, C.J., dissenting from the denial of initial hearing *en*

banc). These States have an interest in obtaining a court order that spares them from having to enforce an illegal administrative order.

3. The Business Association and State Applicants have advanced different arguments. For example, the Business Association Applicants argued in their stay application that the challenged emergency temporary standard is not "necessary," and thus violates the authorizing statute, 29 U.S.C. §655(c), because it was not necessary for OSHA to promulgate an immediately effective standard without using ordinary notice-and-comment rulemaking. *See* Business Association Applicants' Stay Motion at 15. The State Applicants did not raise that argument in the stay application filed with this Court. The State applicants did, however, argue in their stay application: that the risk presented by COVID-19 is not "grave," §655(c); that the challenged rule is not a "temporary" response to an "emergency," *id.*; that the "federalism canon" forbade reading the authorizing statute as empowering OSHA to issue the challenged regulation; and that reading the authorizing statute as permitting OSHA to issue the challenged regulation would cause the statute to violate the Commerce Clause. States' Stay Application at 14–19, 23–25, 27–28, , 28–30. The Business Association Applicants did not raise these arguments in their stay application.

4. In sum, the two groups of applicants have been consistently represented by different attorneys, have distinct interests, and have made different arguments. In light of all that, and because this case is being argued in just over two weeks, it would be exceptionally difficult for counsel for one group to fully grasp and fairly represent the interests of the other.

5. This Court often allows private and government entities to divide argument. *See, e.g.*, *United States v. Texas*, 142 S. Ct. 416 (2021); *Little Sisters of the Poor Saints Peter & Paul Home v. Pennsylvania*, 140 S. Ct. 2367 (2020); *Dep't of Homeland Security v. Regents of the Univ. of Cal.*, 140 S. Ct. 1891 (2020); *Masterpiece Cakeshop, Ltd. v. Colo. Civ. Rights Comm'n*, 138 S. Ct. 1719 (2018). Allowing the Business Association and State Applicants to argue in this case would enable the Court to hear from two groups with distinct insights on a matter of exceptional importance to business, States, public health, and our federalist structure.

6. For all the reasons discussed above, the Business Association and State Applicants believe that allowing both groups of applicants to participate in oral argument would materially aid in the resolution of this case. Therefore, they jointly move to divide evenly their 30 minutes of argument time.

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Respectfully submitted,

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